

24STCV04823 24STCV04823

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C06%2F26%2F2026

Source SHA-256: d6369e5dad459c332e3ffeea11a457cf09df71621c3f43917b38f6a66251bc6f

Case Number: 24STCV04823 Hearing Date: June 26, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV04823

BLUE

NILE MANAGEMENT, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY vs RYAN

JENNEMANN, AN INDIVIDUAL, et al.

June

26, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF BLUE NILE MANAGEMENT, LLC'S MOTION TO COMPEL FURTHER RESPONSES TO

PLAINTIFF'S SPECIAL INTERROGATORIES (SET ONE) ON DEFENDANT THCD ALTMORE, LLC

AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$1,000. PLAINTIFF BLUE NILE MANAGEMENT, LLC'S MOTION

TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) ON DEFENDANT THCD ALTMORE, LLC AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$1,000.

RULING:

The Court grants both
Motions.

On or before July 27, 2026,
Defendant THCD ALTMORE, LLC shall serve further responses and produce documents, without objections unless properly supported, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff
BLUE NILE MANAGEMENT, LLC 's Special Interrogatories 1 through 12 and Requests for Production of Documents 28 through 64.

On or before that same
date, Defendant THCD ALTMORE, LLC, and HUSCH BLACKWELL LLP, jointly and severally, shall pay discovery sanctions in the total sum of \$2,000.00 to Plaintiff BLUE NILE MANAGEMENT, LLC, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

I.
BACKGROUND

On February 27, 2024, BLUE
NILE MANAGEMENT, LLC (Plaintiff) filed a Complaint against RYAN JENNEMANN and THCD ALTMORE, LLC (Defendants)

On July 2, 2025,
Plaintiff filed a Motion to file a Third Amended Complaint (TAC), later filed on July 31, 2025, adding allegations of a fraudulent conveyance between Defendant, a purported lender, and a nonparty tenant, leading to the commercial tenant's unpaid rent owed to Plaintiff and related losses of over \$400,000.00.

The TAC identifies the
following claims:

1.

VIOLATION OF CALIFORNIA CIVIL CODE §
3439.04 (A)(1);

2.
FRAUDULENT TRANSFER AGAINST LENDERS (CIVIL
CODE § 3439.04(A)(2)(A));

3.
FRAUDULENT TRANSFER (CIVIL CODE § 3439.05);

4.
RELIEF, PRESERVATION OF AVOIDED TRANSFERS
(CIVIL CODE § 3439.07);

5.
UNFAIR BUSINESS PRACTICES; AND

6.
DECLARATORY RELIEF.

On September 9, 2025,
Plaintiff filed the "AMENDMENT TO PLAINTIFF'S THIRD AMENDED COMPLAINT," to
correct a tenant's name to "THC DESIGN, LLC."

On April 9, 2026,
Plaintiff filed Motions to Compel Further Responses to Special Interrogatories
1 through 12, and Requests for Documents numbers 28 through 64,
and production of all responsive, non-privileged documents withheld on the
basis of improper objections, together with a privilege log. Plaintiff also
requests \$1,000.00 in sanctions against Defendant and counsel, for each Motion.

Defendant advocates
denying the Motions or sustaining discovery objections and putting restrictions
on discovery.

II.
LEGAL STANDARD

Where respondents object
or respond inadequately to discovery requests, a motion lies to compel further

responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to interrogatories....”]; and 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to an inspection demand....”].) A propounding party’s remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.) If interrogatory responses lack specificity, then parties may move to compel further responses under Code of Civil Procedure section 2030.300, subdivision (a), providing for motions to compel, where parties deem that an answer is evasive, incomplete, or inadequate as to specification of documents. (Best Products, Inc. v. Superior Court (2004) 119 Cal.App.4th 1181, 1190.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Plaintiff contends that Defendant’s responses consist of improper preliminary statements, boilerplate objections, and refusals to provide substantive responses pending a Demurrer.

As to the Motion to

Compel Further Special Interrogatories Defendant summarizes positions by stating the following:

THCD

Altmore, LLC respectfully requests that the Court deny Plaintiff's motion to compel in its entirety, deny Plaintiff's request for sanctions, and grant such other and further relief as the Court deems just and proper. In the alternative, THCD requests that the Court sustain its objections as to Special Interrogatories Nos. 3, 9, and 12, order supplemental section 2030.230 responses for Special Interrogatories Nos. 7, 8, and 10 within 20 days, require Plaintiff to identify the correct legal entity before compelling any further response on any interrogatory using the "TENANT" definition, and order the parties to meet and confer on a supplementation schedule for Special Interrogatories Nos. 1, 2, 4, 5, 6, and 11.

(Opposition, p. 10.)

Regarding the Motion to

Compel Further Document Responses, Defendant summarizes positions by stating the following:

THCD

respectfully requests that the Court deny Plaintiff's Motion in its entirety. In the alternative, the Court should sustain THCD's objections as to all requests using the erroneous "TENANT" definition and require that Plaintiff re-serve corrected Requests for Production, sustain the expert-opinion/work-product objections as to RFPs Nos. 35–38, 40–41, 47–48, 53, and 54; sustain the possession/control objection as to all requests for borrower-entity records now in the receiver's custody or Jennemann's possession; and limit any order to non-privileged, nonwork-product documents not already produced. The Court should deny Plaintiff's request for sanctions.

(Opposition, p. 12.)

The Court's reading of

the Separate Statements reveals that Defendant's discovery responses are not compliant with statutory requirements, by mainly listing unsupported objections and offering to meet and confer after a demurrer ruling.

But the Demurrer was not an automatic discovery stay for Defendant to state in discovery responses. The Court would have had discretion to stay discovery pending a demurrer ruling as to a meritless complaint and did not do that as any justification to withhold discovery. Moreover, the issue is moot after the Demurrer overruling as to the sufficiently plead TAC. The rule is that courts would not abuse discretion in staying discovery, as being unnecessary and burdensome, until a complaint is filed stating at least one viable claim. (*Terminals Equip. Co. v. City* (1990) 221 Cal.App.3d 234, 247.)

And revised discovery propounding is not needed to address the erroneous "TENANT" definition, as Plaintiff filed a pleading amendment correction, on September 9, 2025, and good faith informal meeting and conferring is required to easily get past that already understood correction. "A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion." (*Stewart v. Colonial W. Agency* (2001) 87 Cal.App.4th 1006, 1016. Accord, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293-1294.)

The interrogatory responses must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) A response must "represent the interrogated party's present best and complete answer." (*Fuss v. Superior Court* (1969) 273 Cal.App.2d 807, 816.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406; *Regency Health Services, Inc. v. Superior Court* (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in *Guzman v. General Motors Corp.* (1984) 154 Cal.App.3d 438, 444.)

The document responses must consist of: 1) An agreement to comply, stating whether the productions or

inspection will be allowed "in whole or in part," and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent's possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.) "Even where a party deems a demand to be objectionable, he [she, or it] still must identify those items which fall into the category of item in the demand to which an objection is being made." (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 901, fn.3.)

And the Court overrules

Defendant's discovery objections, without prejudice to properly support them in connection with further responses.

First, discovery is

allowed even if it is duplicative of other information already obtained. (Tbg Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448; Carter v.

Superior Court (1990) 218 Cal.App.3d 994, 997 [allowing demands for documents and depositions notices requesting documents].) "A party is permitted to use multiple methods of obtaining discovery and the fact that information was disclosed under one method is not, standing alone, a proper basis for refusing to provide discovery under another method." (Irvington-Moore, Inc. v. Superior Court (1993) 14 Cal.App.4th 733, 739. Accord, Bunnell v. Superior Court

(1967) 254 Cal.App.2d 720, 723 ["plaintiff could not refuse to answer merely on the claim that the requested information had been given in previous depositions...."].) "The use of ... interrogatories is in addition to and

exclusive of the right to take the deposition of the same party, and either procedure may be resorted to before or after the other." (Greyhound Corp. v. Superior Court (1961) 56 Cal.2d 355, 373, superseded by statute on other grounds as

stated in Dowden v. Superior Court

(1999) 73 Cal.App.4th 126, 132.) Courts have discretion to prohibit discovery if it is unreasonably duplicative or unduly burdensome. (E.g., Code Civ.

Proc., § 2019.030, subd. (a); *City of King City v. Community Bank of Central California* (2005) 131 Cal.App.4th 913, 933; *Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.)

Second, courts should control undue burden placed upon parties in requests for discovery, if the information is shown to be equally available to both parties. (*Calcor Space Facility v. Superior Court* (1997) 53 Cal.App.4th 216, 225.)

Third, no objectionable premature disclosure of expert opinion occurs before the retaining of experts as to potential experts already witnessing relevant aspects. (See *Schreiber v. Est. of Kiser* (1999) 22 Cal.4th 31, 39 ["may testify as to any opinions formed on the basis of facts independently acquired and informed by his training, skill, and experience."].)

Fourth, as to overbreadth objections involving no claim of privilege, courts determine whether the discovery is "reasonably calculated to lead to the discovery of admissible evidence", generally resolving doubt in favor of permitting discovery. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 542.) "When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.)

Fifth, a privacy objection is not ripe for adjudication before a court where there is no factual basis for ruling, such as respondents' identifying the documents withheld in a privilege log or elsewhere. (*Connecticut Indem. Co. v. Superior Court* (2000) 23 Cal.4th 807, 818.)

Sixth, "if documents responsive to a document request are withheld on privilege grounds, a privilege log or some equivalent specification of any asserted privilege objection 'shall' be supplied." (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 813.) "[L]egislation amended subdivision (c)(1) of Code of Civil Procedure section 2031.240 to require the preparation of a privilege log 'if necessary' to 'provide sufficient factual information for other parties to evaluate the merits' of a claim of privilege or protected work product." (*Bank of Amer., N.A. v. Superior Court* (2013) 212 Cal.App.4th 1076,

1098.)

Seventh, “to show the

merits of one's case has never been a threshold requirement for discovery....” (Williams v. Superior Court (2017) 3

Cal.5th 531, 558.) “In pursuing such discovery, the strength or weakness of the

plaintiff's individual claim is immaterial....” (Williams v. Superior Court (2017) 3 Cal.5th 531, 551.) “[T]he

statutory scheme imposes no obligation on a party propounding interrogatories

to establish good cause or prove up the merits of any underlying claims.” (Ibid. at p. 550.) Parties requesting discovery information are not

first required to prove that it would be relevant and admissible. (Alch v. Superior Court (2008) 165

Cal.App.4th 1412, 1429-1431.)

IV.

CONCLUSION

The Court grants both Motions, as prayed.